

Sexual Violence as a War Tactic - Security Council Resolution 1888: Next Steps



Hillary Clinton and John Sowers at Security Council, 30 September 2009. UN Photo/Mark Garten

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At the end of September 2009, two sharply contrasting events coincided: the United States Secretary of State Hillary Clinton introduced resolution 1888 at the United Nations Security Council on 30 September which, like resolution 1820 passed the previous year,

condemns conflict-related sexual violence and aims to equip the UN with measures to prevent it and to address impunity. Just two days before in Conakry, Guinea, a peaceful opposition demonstration to urge an accelerated elections timetable was violently suppressed in the capital's stadium. An International Commission of Inquiry (ICoI) determined that 156 people were killed or disappeared. A striking feature of this aggression was the use of sexual violence: at least 109 women were raped, according to leaked accounts of the ICoI's report—many publicly in the stadium, some captured on cell phone cameras and circulated to alert the world. The Permanent Representative of France to the United Nations, Gérard Araud, made the connection between the sexual violence in Conakry and resolution 1888 in his comments to the Security Council on the morning of 30 September.

The UN is undergoing a paradigm shift in its approach to the protection of civilians. There is growing recognition that warring parties often explicitly target citizens. However, a significant implementation lag exists between progressive policy and tangible change in the behaviour of armed groups. There is an urgent need to accelerate implementation of the many progressive measures embedded in both resolutions 1820 and 1888. The events in Guinea and the persistently high levels of rape in the Democratic Republic of the Congo and elsewhere illustrate that extremely brutal sexual violence has become an established part of the repertoire of conflict and coercion.

Sexual violence in conflict is nothing new. It has long been considered an inevitable, if unfortunate, by-product of war, a form of collateral damage beyond the control of military commanders. But like other abuses of civilians, there is nothing inevitable about it. Any command structure that can organize an assault or punish deserters can organize disciplinary action to punish rapists, and thereby deter future abuses. Beyond a failure to prevent, evidence is mounting that in many conflicts of the last century, sexual violence has been orchestrated by political and military leaders. In some cases, such as in the rape camps of Bosnia or ethnically targeted rape in Rwanda, sexual violence has been directed from the highest political levels.

Sexual violence during conflict has proven highly effective in breaking the enemy's morale, particularly where women are raped in public, or where relatives are coerced into participating. Widespread and systematic sexual violence also hampers sustainable post-conflict recovery. It does so in at least three ways: first, it undermines social stability by destroying families and communities; second, the fear of sexual violence restrains women's mobility, leading them to retreat from economic activity, and causing girls to stay home from school; third, when perpetrators of sexual violence go unpunished, efforts to establish faith in the State's ability to protect its citizens and establish the rule of law, is seriously undermined.

Resolutions 1820 and 1888 represent the UN commitment to addressing these issues. Resolution 1820 calls on parties to armed conflict, including non-State actors, to protect civilians from sexual violence, enforce military discipline, uphold command responsibility, and prosecute perpetrators. It directs UN departments and specialized agencies of the UN system to ensure that peacekeeping forces are adequately equipped and trained to protect civilians from sexual violence, and calls on the UN Peacebuilding Commission to analyze the impact of conflict-related sexual violence on early recovery and long-term peacebuilding. Resolution 1820 also called for a report from the Secretary-General that would outline a plan of action to address sexual violence in an integrated and systematic fashion throughout the UN system. Issued in July 2009, the report noted the need for senior leadership, better coordination and accountability. This prompted resolution 1888, which

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called for the appointment of a Special Representative of the Secretary-General, the formation of a task team of judicial experts to help post-conflict countries prevent impunity, the appointment of women protection advisors in relevant UN peacekeeping missions, proposals for a monitoring and reporting mechanism, and the production of an annual report that would name parties –credibly suspected of committing patterns of sexual violence.

When implemented, resolution 1888 will equip the UN system with an arsenal of measures to combat sexual violence. Taken together, resolutions 1820 and 1888 should help to ensure that peacekeepers are trained, staffed, and equipped to prevent sexual violence. Resolution 1889, passed just days after 1888, called for the Secretary-General to devise a strategy to increase the proportion of women peacekeepers. Resolution 1888 aims to make prosecution of sexual violence a priority. Both resolutions 1820 and 1888 request the Secretary-General to include this issue in his dialogues with parties to armed conflict, and both require that this issue be addressed in peace negotiations.

A recent review undertaken by the United Nations Development Fund for Women of nearly 300 peace accords signed since 1998, ranging from ceasefire agreements to specific agreements on justice, reparation, wealth-sharing and power-sharing, showed that only 18 refer to sexual or gender-based violence. Sexual violence is not mentioned even in cases where it has been a major feature of the fighting, such as in Bosnia, Sierra Leone and Liberia. This can have devastating implications for peace. In June 2009 at a New York meeting on peace talks and sexual violence organized by UN Action Against Sexual Violence in Conflict, former Under-Secretary-General for Humanitarian Affairs Jan Egeland, stated: “If sexual violence is not addressed squarely in ceasefires and peace processes, there will be no peace for women.”

The large-scale sexual violence that occurred in Guinea in September 2009 within days of the passage of resolution 1888 made international headlines. Neither global public opinion nor the guardians of international peace and security will continue to ignore this issue, specially after the swiftly-organized International Commission of Inquiry has given attention to this crime. Resolutions 1888, 1820 and 1325 on women, peace and security, as well as resolution 1889 which addresses peacebuilding, make clear the responsibilities of Member States and UN institutions to respond with determination. There can be no further doubt about the fact that sexual violence is an instrument of conflict, that its prevention is an essential element of peacebuilding, and that women’s leadership is needed to ensure sustainable peace.